

HOUSE BILL 1691

By Sherrell

AN ACT to amend Tennessee Code Annotated, Title 42,
Chapter 5, relative to airports.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 42-5-202, is amended by adding the following as a new subsection:

(d) Notwithstanding another law or a private act to the contrary, a joint board established by two (2) municipalities and two (2) counties pursuant to an interlocal agreement entered into pursuant to title 12, chapter 9, for the purpose of operating an airport, is vested with all the powers, rights, duties, and privileges conferred upon a joint board under this chapter and all the powers, rights, duties, and privileges of a regional airport authority under chapter 3 of this title. Such board is a public instrumentality of the creating municipalities and counties and a public body corporate and politic under the laws of this state. Such joint board may file a charter with the secretary of state containing such information as is required for a public nonprofit corporation to evidence the existence of such joint board as a corporate entity and such other information as may be deemed relevant by the joint board. Notwithstanding this part, the governance of the joint board, including the terms of office of the members of the board and the composition of the board, must be set forth in the interlocal agreement creating the joint board and not by any other provision of this title.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.